Understanding Canadian law

Grade 11 · Answer Sheet A

Name: _____

Date: _____

Part 1

1. **a) A lawyer's signature** — Which of these is NOT needed for a valid contract?
2. **c) The defendant owed a duty of care and fell below the standard of care** — Which of these must a plaintiff show in a negligence case?
3. **b) Criminal law** — Under section 91 of the Constitution Act, 1867, which power belongs to Parliament?
4. **b) Everyone, including the government, must follow the law** — What does the rule of law mean?
5. **c) 12 to 17** — The Youth Criminal Justice Act applies to young people of which ages?
6. **a) A summary conviction offence** — Which kind of offence is the least serious?

Part 2

1 — The Quebec Act keeps French civil law in Quebec (1774)

3 — R. v. Oakes sets the test for reasonable limits (1986)

2 — The Constitution Act, 1867 divides powers between Parliament and the provinces (1867)

4 — The Civil Code of Québec comes into force (1994)

5 — R. v. Jordan sets time limits for criminal trials (2016)

Part 3

A customer slips on an icy store entrance and breaks a wrist. Explain how a negligence claim against the store would work.

A good answer mentions: The customer (plaintiff) sues the store (defendant); the store owed a duty of care to people entering; the question is whether it met the standard of a reasonable occupier (salting, clearing, warning signs); the breach must have caused the injury; the plaintiff proves this on a balance of probabilities; damages cover costs, lost wages and pain; in Ontario, claims up to $50,000 can go to Small Claims Court, usually within two years; many cases settle or go to mediation.

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